

Court No. - 2

Case :- WRIT - C No. - 40400 of 2009

Petitioner :- Dr. Nirmal Kumar

Respondent :- Pvvnl And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Pankaj Kumar Shukla,A.N. Singh

Hon'ble Ashok Bhushan,J.

Hon'ble Ram Autar Singh,J.

Heard counsel for the petitioner and Sri P.K. Shukla appearing for respondents No.1 and 2.

By this writ petition, the petitioner has prayed for quashing the order dated 4th May, 2009 by which order the representation of the petitioner against the assessment has been rejected.

The petitioner has earlier come to this Court by filing Writ Petition No.18843 of 2008, which was disposed of by this Court directing the authority to decide the objection of the petitioner subject to petitioner depositing 50% of the amount under citation. The petitioner deposited the amount and thereafter objection has been decided.

Learned counsel for the petitioner contends that while deciding the objection by the impugned order the respondents have not considered the provisions of Paragraphs 6.8 and 8.1 of the U.P. Electricity Supply Code, 2005. He further submits that no proper opportunity was given to the petitioner before deciding the objection.

Under Section 127 of the Electricity Act, 2003 the petitioner has right of appeal against the order impugned. All the issues, which are raised in this writ petition can very well be raised and gone into in appeal. There being statutory remedy of appeal, we are not inclined to entertain this writ petition. The petitioner may avail his remedy.

Learned counsel for the petitioner submits that appeal will be filed within three weeks from today. In case appeal is filed within three days from today, the same shall be considered on merits in accordance with law.

Subject to above observations, the writ petition is dismissed.

Order Date :- 7.8.2009

Rakesh